

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Plaintiff designates
Kings County as the
place of trial

----- X
CARLOS CORREA,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK,
NYPD DETECTIVE KELVIN PERALTA and
NYPD SERGEANT WILLIAM McNEECE,

Defendants.

----- X

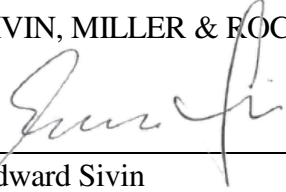
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 13, 2020

SIVIN, MILLER & ROCHE, LLP

By


Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York: 100 Church Street, New York, NY 10007

-NYPD Detective Kelvin Peralta: c/o NYPD Housing PSA2, 560 Sutter Ave., Brooklyn, NY 11207

-NYPD Sgt. William McNeece: c/o Narc. Boro Brooklyn North, 245 Glenmore Ave.,
Brooklyn, NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CARLOS CORREA,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE KELVIN PERALTA and
NYPD SERGEANT WILLIAM McNEECE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety (90) days of the accrual of the causes of action herein, notices of claim and intention to sue were duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained The New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD Detective Kelvin Peralta (hereinafter “Peralta”) was and is a detective employed by the NYPD.

6. That at all times herein mentioned, Peralta was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Peralta was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Sergeant William McNeece (hereinafter “McNeece”) was and is a sergeant employed by the NYPD.

9. That at all times herein mentioned, McNeece was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, McNeece was acting under color of state law.

11. That at all times herein mentioned, McNeece was Peralta’s supervisor.

PERALTA’S HISTORY OF MALFEASANCE

12. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

13. That for a period of years immediately preceding the events underlying this lawsuit, Peralta, while acting within the course and scope of his employment with the NYPD, engaged in numerous acts of intentional malfeasance against, and routinely violated the constitutional rights of, citizens of the State of New York and other persons lawfully within the State of New York.

14. That for a period of years immediately preceding the events underlying this lawsuit, Peralta had been named as a defendant in numerous lawsuits in which it was alleged that

Peralta, while acting within the course and scope of his employment with the NYPD, engaged in acts of intentional malfeasance against, and routinely violated the constitutional rights of, citizens of the State of New York and other persons lawfully within the State of New York.

15. That included among those lawsuits were the cases of *Burney v. City of New York, et al.*, *Jones v. City of New York, et al.*, *Woodruff v. City of New York, et al.*, *Evans v. City of New York, et al.*, *Johnson v. City of New York, et al.*, *Wilson v. City of New York, et al.*, *Gordon v. City of New York, et al.*, *Beaton v. City of New York, et al.*, *Payne v. City of New York, et al.*, *McClain v. City of New York, et al.*, *Schulman v. Calhoun, et al.*, and *Bell v. City of New York, et al.*

16. That these lawsuits alleged, and thereby put the City, McNeece, and Peralta's other supervisors on notice, that Peralta had, among other things, engaged in acts of dishonesty, that he had violated the constitutional rights of others, that he had falsely arrested and maliciously prosecuted others, and that he had falsely accused others of possession of illegal drugs and other contraband.

17. That upon information and belief, for a period of years immediately preceding the events underlying this lawsuit, Peralta had been the subject of numerous complaints to the NYPD and to the Civilian Complaint Review Board (hereinafter "CCRB"), in which it was alleged that Peralta, while acting within the course and scope of his employment with the NYPD, engaged in acts of intentional malfeasance against, and routinely violated the constitutional rights of, citizens of the State of New York and other persons lawfully within the State of New York.

18. That upon information and belief, these complaints to the NYPD and to CCRB alleged, and thereby put the City, McNeece, and Peralta's other supervisors on notice, that Peralta had, among other things, engaged in acts of dishonesty, that he had violated the constitutional rights of others, that he had falsely arrested and maliciously prosecuted others, and that he had falsely

claimed that others were in possession of illegal drugs and other contraband.

19. That in the years immediately preceding the events underlying this lawsuit, the City, McNeece, and Peralta's other supervisors knew about and had actual notice of Peralta's pattern of malfeasance.

20. That despite their knowledge of Peralta's pattern of malfeasance, the City, McNeece, and Peralta's other supervisors, deliberately failed and refused to intervene to take any remedial measures to curb Peralta's malfeasance, despite having had reasonable opportunities to do so.

21. That despite their knowledge of Peralta's pattern of malfeasance, the City, McNeece, and Peralta's other supervisors, deliberately failed and refused to investigate Peralta's actions or to train, monitor, or supervise Peralta in an attempt to curb Peralta's malfeasance, despite having had reasonable opportunities to do so.

22. That despite their knowledge of Peralta's pattern of malfeasance, and despite their knowledge that Peralta was unfit to remain as a member of the NYPD, the City, McNeece, and Peralta's other supervisors retained Peralta as a member of the NYPD under their command.

THE FACTS

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That on or about July 17, 2019, Peralta and other NYPD officers forcibly entered plaintiff's apartment at 60 Division Avenue, Apt. 21H, Brooklyn, NY, without plaintiff's permission or consent.

25. That the aforesaid forcible entry into plaintiff's apartment was without justification or privilege.

26. That upon information and belief, the forcible entry by Peralta and the other NYPD officers was committed under the pretext of a warrant that Peralta had procured by fraudulent means.

27. That after they entered plaintiff's apartment, Peralta and the other NYPD officers forcibly seized, detained, and handcuffed plaintiff and searched his premises, without plaintiff's consent and without probable cause to believe that plaintiff had committed or was about to commit any crime.

28. That during the course of plaintiff's forcible detention, Peralta and the other NYPD officers gratuitously and maliciously ridiculed plaintiff by, among other things, placing a party hat on plaintiff's head and directing plaintiff to sing a song.

29. That during the course of their illegal search of the apartment, Peralta and the other NYPD officers took possession of approximately \$40,000 in cash that belonged to plaintiff and that plaintiff had in a locked safe.

30. That the confiscated cash represented the remainder of settlement proceeds of a lawsuit in which plaintiff had been awarded money for personal injuries, and which constituted practically all of plaintiff's life savings.

31. That during the course of their illegal search of the apartment, Peralta and the other NYPD officers, without justification, damaged portions of plaintiff's apartment and property within the apartment.

32. That despite their unlawful search of his apartment, neither Peralta nor any of the other NYPD officers discovered any drugs, weapons, or other contraband, or evidence of any illegal activity.

33. That at the conclusion of their unlawful search, Peralta and the other NYPD

officers falsely claimed to have recovered illegal drugs from inside plaintiff's apartment.

34. That after their purported, albeit false, claim of having recovered illegal drugs from plaintiff's apartment, Peralta and the other NYPD officers arrested plaintiff without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime.

35. That after arresting plaintiff, Peralta and the other NYPD officers continued to forcibly detain and imprison plaintiff at various locations, including but not limited to a police vehicle and a police precinct, until plaintiff's release from custody approximately ten hours after his arrest.

36. That on or about July 17, 2019, Peralta also initiated and/or caused to be initiated a criminal prosecution of plaintiff, in which Peralta falsely charged plaintiff with criminal possession of a controlled substance, a crime of which plaintiff was innocent and of which Peralta knew plaintiff to be innocent.

37. That neither the City nor Peralta had probable cause to believe that plaintiff was guilty of the crime with which he was charged.

38. That in support of the criminal prosecution, Peralta drafted and executed a Desk Appearance Ticket in which he made accusations against plaintiff that were false and that Peralta knew to be false.

39. That on or about July 23, 2019, in further support of the criminal prosecution, Peralta executed a Criminal Court Complaint in which he again made accusations against plaintiff that were false and that Peralta knew to be false.

40. That in support of the criminal prosecution, Peralta also fabricated evidence and knowingly made false accusations against plaintiff to fellow NYPD officers and to members of the

Office of the Kings County District Attorney.

41. That among the fabricated evidence were purported twist bags containing crack cocaine and a quantity of buprenorphine.

42. That among the false accusations made by Peralta were that he had recovered the aforementioned drugs from plaintiff's closet and that plaintiff told Peralta that the drugs belonged to plaintiff's brother.

43. That the aforementioned fabricated evidence and false statements by Peralta constituted material evidence and evidence that likely would influence the court and jury on the issue of plaintiff's guilt or innocence.

44. That at all times herein mentioned, McNeece condoned and approved of Peralta's actions and the arrest and prosecution of plaintiff.

45. That as a result of the false charges initiated by Peralta, and the aforementioned fabricated evidence and false statements by Peralta, plaintiff was required to make court appearances to defend against the baseless charge and otherwise suffered a significant deprivation of his liberty.

46. That on or about February 13, 2020, the criminal charge against plaintiff was dismissed, and the criminal prosecution terminated favorably to plaintiff.

47. That as a further result of the false criminal charge initiated by Peralta, Peralta's claim that illegal drugs were recovered by the NYPD from plaintiff's apartment, and the pending prosecution of plaintiff, eviction proceedings were initiated against plaintiff by the City of New York Department of Housing Preservation and Development.

48. That from the approximate \$40,000 that Peralta and the other NYPD officers removed from plaintiff's apartment, Peralta and the other NYPD officers vouchered only \$2,409

and kept the remainder of the cash for themselves; the remainder of the cash has never been returned to plaintiff.

49. That as a result of the aforementioned actions of the City, Peralta, and the other NYPD officers, plaintiff endured and continues to endure conscious pain and suffering and loss of enjoyment of life, suffers and continues to suffer from extreme emotional distress, and has incurred economic loss.

50. That all of the causes of action herein fall within one or more of the exceptions of CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST PERALTA
(Illegal Entry and Search and Seizure Under 42 U.S.C. § 1983)

51. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

52. That the aforesaid actions of Peralta in fraudulently procuring a search warrant and then entering plaintiff's apartment, seizing plaintiff, and searching plaintiff's apartment without probable cause and without plaintiff's permission or consent, constitute illegal and unreasonable searches and seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE CITY AND PERALTA
(State Law Claim for Assault and Battery)

53. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

54. That the aforesaid actions of Peralta and the other NYPD officers in forcibly seizing and handcuffing plaintiff constitute an assault and battery under New York State law, for

which Peralta and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST PERALTA

(Excessive Force Claim Under 42 U.S.C. § 1983)

55. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

56. That the aforesaid actions by Peralta in forcibly seizing and handcuffing plaintiff constitute a use of excessive force and a seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY AND PERALTA

(State Law Claim for False Arrest/Imprisonment)

57. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

58. That the aforesaid actions by Peralta and the other NYPD officers in forcibly detaining, arresting, and imprisoning plaintiff constitute a false arrest and false imprisonment under New York State law, for which Peralta and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST PERALTA

(False Arrest/Imprisonment Under 42 U.S.C. § 1983)

59. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

60. That the aforesaid actions by Peralta in forcibly detaining, arresting, and imprisoning plaintiff without probable cause constitute unreasonable and illegal seizures of plaintiff

in violation of his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY AND PERALTA
(State Law Claim for Malicious Prosecution)

61. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

62. That the aforesaid actions by Peralta and the other NYPD officers in bringing a baseless criminal charge against plaintiff without probable cause constitute a malicious prosecution under New York State law, for which Peralta and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION AGAINST PERALTA
(Malicious Prosecution Under 42 U.S.C. § 1983)

63. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

64. That the aforesaid actions by Peralta in initiating a baseless criminal charge against plaintiff without probable cause constitute an unreasonable and illegal seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY AND PERALTA
(Conversion Under New York State Law)

65. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

66. That the aforesaid actions by Peralta and the other NYPD officers in confiscating, keeping, and failing to return to plaintiff the cash that these officers removed from

plaintiff's apartment constitute a conversion under New York State law, for which Peralta and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION AGAINST PERALTA

(Denial of Right To Fair Trial Under 42 U.S.C. § 1983)

67. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

68. That the aforesaid actions by Peralta in fabricating evidence and making false accusations against plaintiff to fellow officers and to the Office of the Kings County District Attorney constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION AGAINST McNEECE

(Failure to Intervene Under 42 U.S.C. § 1983)

69. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

70. That McNeece's condoning and approval of the actions of Peralta and the other NYPD officers, and his failure to intervene to stop or prevent those actions from continuing, resulted in a violation of plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

ELEVENTH CAUSE OF ACTION AGAINST McNEECE

(Supervisory Liability Under 42 U.S.C. § 1983)

71. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

72. That McNeece's failure and refusal adequately to investigate Peralta's actions, acquiescence in Peralta's conduct, failure to take any remedial action against Peralta, allowing Peralta to remain employed as an officer with the NYPD, gross negligence in his supervision of Peralta, and deliberate indifference to the rights of others by failing to act on information that constitutional rights were being violated by Peralta, subject McNeece to supervisory liability for the actions of Peralta toward plaintiff, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

TWELFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision, Investigation, and Retention)

73. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

74. That the aforementioned actions by Peralta followed and were the result of the negligence of the City in its hiring, training, supervision, investigation, and retention of Peralta.

THIRTEENTH CAUSE OF ACTION THE CITY

(*Monell* Claim)

75. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

76. That the City's deliberate indifference to a pattern and practice by Peralta of violating the constitutional rights of others, and deliberate failure adequately to train, monitor, investigate, and supervise Peralta, constitute a *de facto* unconstitutional pattern and practice, which pattern and practice led to the injuries sustained by plaintiff, and entitles plaintiff to recover damages pursuant to 42 U.S.C. § 1983 and *Monell v. Dep't. of Soc. Servs. Of City of N.Y.*, 436 U.S. 658 (1978).

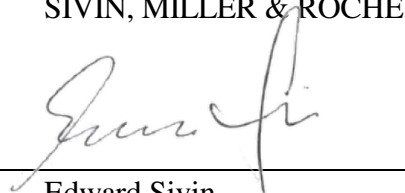
WHEREFORE, plaintiff demand judgment against defendants, and all of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Peralta and McNeece, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
August 13, 2020

Yours, etc.

SIVIN, MILLER & ROCHE, LLP

By



Edward Sivin

Attorneys for plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

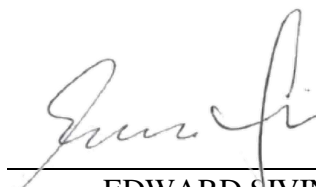
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
August 13, 2020


EDWARD SIVIN

Index No. Year 2020

SUPREME COURT OF THE STATE OF NEW YORK
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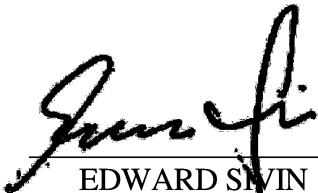
VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.


EDWARD SIVIN

Dated: New York, New York
August 13, 2020